

 Internal Case Management System Worksheet - Case Closing					Top Allegation MISSING PROPERTY - FROM PREMISE - DURING SEARCH WARRANT	Group G22-GROUP 22 Date of This Report 11/27/2018	
Date Reported 04/25/2018	Date Assigned 04/25/2018	IAB Log No. 2018-15810	Case No. (G22) C- 2018-184	Folder Type CORRUPTION	Preliminary Case Type CORRUPTION	Follow-Up No.	Worksheet Tracking No. 3364022

Topic/Subject (Case Closing) CASE CLOSING - UNSUBSTANTIATED/ MINOR PROCEDURAL VIOLATION	Activity Date 11/27/2018	Activity Time 00:00
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Referred to Group -	Conferred With	Next Review Date
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Closing Statement Case#: C2018-0184 Log#: 2018-15810 2018-16521 Subject Officer(s) PO Richard Cleri, Tax #944034, SRG 2 Date of Appointment: 1/23/2007 Probation: No Current Duty Status: Active Sgt. Janette Cruz, Tax #914329, Intel Section Date of Appointment: 8/30/1993 Probation: No Current Duty Status: Active Sgt. Brian Clements, Tax #929108, SRG 2 Date of Appointment: 7/1/1998 Probation: No Current Duty Status: Active Det. Edwin Espinal, Tax #934831, SRG 2 Date of Appointment: 7/1/2004 Probation: No Current Duty Status: Active Det. Kevin Beasley, Tax #951534, SRG 2 Date of Appointment: 1/9/2012 Probation: No Current Duty Status: Active Det. Robert Welsome, Tax #919858, ESU Date of Appointment: 4/15/1997 Probation: No Current Duty Status: Active Det. James Tobin, Tax #951340, ESU Date of Appointment: 7/6/2011 Probation: No Current Duty Status: Active Witnesses: DI William Kivlehan, Tax #919249, SRG 2 Lt. Michael Raso, Tax #933235, SRG 2 Non MOS Witnesses:

[REDACTED]

Date Case Received:
April 25, 2018

Date of Occurrence:
April 25, 2018

Administrative Statute of Limitations Expires:
October 25, 2019

Classification:
C2

Investigator:
Sergeant Kareem Francis, Tax #936612

Team Leader:
Lieutenant Philip Sena, Tax #937517

Overall Case Disposition:
Unsubstantiated/Minor Procedural Violation

Details:

Log # 2018-15810

The reporter, [REDACTED] stated on April 25, 2018 between 5 to 6 am, the NYPD entered his apartment and searched his residence. He further stated that the officers never presented a search warrant until they arrived at the 48 precinct. [REDACTED] stated that the officers ransacked and destroyed property (walls). [REDACTED] further stated that the search warrant was for his [REDACTED], which he was informed that cash and jewelry wash missing from his brother's bedroom. [REDACTED] stated that he was informed by his sister in law that his brother's watch with diamonds, earrings and a silver chain was missing. She informed him that she didn't know the amount of money that was missing at that time. [REDACTED] stated that he doesn't know his sister in law name, but she told him she was thrown on the floor. He stated after the officers left, 911 was called for his sister in law who sustained bruises to the arm, back, and legs. She was taken to St. Barnabas Hospital. [REDACTED] could not provide description of Officers.

Log #2018-16521

On Monday, April 30, 2018 at 0948 hours the complainant, [REDACTED] called to report that approximately \$6000.00 dollars USC is missing from the apartment. Complainant states the money was either in his brother's pocket when he was arrested or in his brother's armoire. Complainant also states a silver chain, silver watch with a black band, diamonds and possibly 2 diamond earrings are missing as well. Complainant is unsure if earrings are actually missing. He further stated that he has to check with his [REDACTED] to see if she found the earrings, which she stated that he is unsure of her real name. Complainant states that because of his beliefs he had to get permission to speak with Internal Affairs. He stated he was giving permission and is now willing to speak with investigators.

Identification and Interview of Complainant:

The complainant, [REDACTED] is known to the Department under NYSID# [REDACTED], who resides at [REDACTED]. [REDACTED] was interviewed by investigators.

[REDACTED] stated that on 04/25/2018 at approximately 0500 hours while present at his residence sleeping, he heard banging at the door. [REDACTED] believed his [REDACTED] was banging at the door. [REDACTED] stated that officers broke down the front door and were inside of his home yelling. When [REDACTED] opened the door to his room, officers grabbed him, threw him and his [REDACTED], [REDACTED] who informed officers she was pregnant on the ground (face down) then handcuffed them. [REDACTED] added that his room was "torn apart" and officers asked him "Where's the gun". [REDACTED] told the officers that there was a taser gun by the window and referred to antique firearms that he inherited from his uncle. [REDACTED] stated that Officers made holes on the walls, broke mirrors, broke pictures, and destroyed his home. [REDACTED] stated that his [REDACTED] informed him that the Police found bullets in his room and that the Police were making up lies. [REDACTED] stated that his [REDACTED] also informed him that [REDACTED] (C/V's [REDACTED] who is 5 months pregnant) is in the hospital because she was bleeding heavily and had a miscarriage.

[REDACTED] did admit to having marihuana and informed the officers of the marijuana inside of his home. [REDACTED] stated that everyone present inside of the home was handcuffed, his [REDACTED], his [REDACTED], his [REDACTED], his [REDACTED] and his [REDACTED]. [REDACTED] stated that he was not shown a warrant to search his home until he was inside of the 48 Pct. [REDACTED] stated that his [REDACTED] was transported by ambulance from the home and alleged that his [REDACTED] sustained bruises to her face and arm. [REDACTED] stated that he has old jewelry, two silver rings, two pairs of silver ear rings, skinny silver chain and a watch. [REDACTED] stated he had \$5,000.00 put away inside of his armoire. [REDACTED]

█████ was informed by his █████ that all the above said property and cash was gone. █████ admitted to possessing collectors Army bullets (big bullets), Dual antique guns from the 1800's (not operable) which were not vouchered. █████ described officers as mostly male with facial hair, one black male officer and one female officer. █████ stated that he has injuries and pain to his hands from tight handcuffs. █████ declined medical attention because he did not want the arrest process to be prolonged.

A second interview was conducted with █████ which he stated that he doesn't remember the whole incident due to the fact that it was early in the morning and he was hospitalized for a month in the hospital. █████ stated that he was hospitalized on an unrelated incident that didn't involve UMOS. He stated all of his property is accounted for except his 14 karat Cuban link chain and approximately \$5700 USC from his armoire. I informed █████ that the officers vouchered \$5100 USC from his residence. However, █████ insisted that he had \$5700. He further stated that the money was his grandmother's SSI. He stated that there were approximately twelve (12) officers in the apartment and four (4) officers that entered his room. █████ further stated that the officers damaged his TV, PS3 and his couch while looking for a firearm. █████ only identified Sgt. Clements in the photo arrays I presented him.

It should be noted that initially █████ informed the I/Os that he had approximately \$5,000 USC. When █████ informed that the officers vouchered \$5,100 USC, he changed his amount to \$5,700 USC.

A background check of █████ revealed that he has █████. I also conducted an ICMS, IAPRO, CCRB check which revealed no information.

The complainant, █████, is known to the Department under NYSID# █████, who resides at █████, █████ was interviewed by investigators.

█████ stated that an Officer told █████ to shut up and threatened to arrest everyone in the home. █████ then related that another Officer informed her that the Search Warrant was signed by a judge for a gun that someone called in stating that they had guns in the house. She stated that all officers were wearing jeans, raid NYPD jackets with shields displayed. █████ stated that there were approximately 30 officers in the apartment. She stated that an officer asked █████ if there was a gun in the home which █████ responded "no, just weed." █████ added that █████ had two (2) plastic bags with different types of bullets (belonging to his uncle) located inside of his sneakers in plain view. █████ stated that officers took \$6,000 from █████ and her. She further stated that she was missing two (2) \$20 bills missing.

A background check of █████ revealed that she has █████. I also conducted an ICMS, IAPRO, and a CCRB check which revealed no information.

Identification of the Reporter:

The reporter, █████ is known to the Department under NYSID# █████, who resides at █████ was interviewed by investigators.

█████ stated that the cops completely broke the door down, off the hinges and ran into his house with flashlights and firearms drawn. █████ confirmed his █████, █████ was arrested. He stated the officers pushed his sister-in-law to the ground who is currently pregnant. He further stated that he believes she had some bruises. █████ stated, "Supposedly" jewelry is missing out of his █████ bedroom, however he cannot enter the room because, before going to the hospital, his sister-in-law locked the bedroom door. He stated that all this information is according to his sister-in-law and he does not know if it is true. He stated that a silver diamond watch, a silver chain and white gold earrings were missing from the apartment. █████ expressed his discontent for the fact that the officers busted down the front door and ransacked their belongings. He further stated that he thinks the television in the room is broke and the video game system as well. He stated that his grandmother nearly had a heart attack because she is really old and the incident startled her (his grandmother did not seek medical treatment).

A background check of █████ revealed that he has █████. I also conducted an ICMS, IAPRO, and a CCRB check which revealed no information.

Identification of the Witness(es):

█████ (█████) was interviewed and stated that on April 25, 2018 at approximately 0500 hours, she was sleeping in her bedroom with the television on. █████ stated that due to the television being on and her being hard of hearing, she did not hear the police enter the apartment. █████ stated that she realized the police were there when they came to the door of her room. █████ stated that the officers were dressed in helmets and had shields and firearms. █████ stated that she did not observe the police interacting with anyone else because she remained inside of her room. EMS responded to the apartment and removed █████ for treatment due to her high blood pressure. █████ stated that when EMS removed her from the apartment she observed her █████ and his █████ in handcuffs. █████ stated that she was transported to St. Barnabas Hospital and given an EKG, which came back normal. █████ did not sustain any injuries and had no allegations against the officers.

█████ (█████) was interviewed and stated on April 25, 2018 at approximately 0500 hours, she was sleeping in her bedroom with her █████; █████ when she was woken up by police officers wearing armor gear entering her bedroom. █████ stated the unknown police officers gave her verbal commands to comply with their instructions to avoid being detained. █████ stated the only contact she and her █████ had with the unknown police officers was verbal communication. █████ stated she and her █████ were never handcuffed. █████ stated she did not sustain any

injuries during the incident. [REDACTED] stated upon exiting her bedroom, she observed her brother ([REDACTED] his [REDACTED] [REDACTED], and her other [REDACTED] handcuffed in the living room. [REDACTED] stated the police escorted everyone out of the house to the hallway while they searched the apartment. [REDACTED] stated the officers who conducted the search wore civilian clothing. [REDACTED] stated she did not witness the search.

[REDACTED] was interviewed and stated on April 25, 2018 at approximately 0500 hours, she was sleeping in her bedroom with her [REDACTED] when she was woken up by police officers wearing helmets inside of her bedroom. [REDACTED] stated the unknown police officers gave her verbal commands to "stay still" and "don't move" while they search the house. [REDACTED] stated the only contact she and her [REDACTED] had with the unknown police officers was verbal communication. [REDACTED] stated she did not sustain any injuries during the incident. [REDACTED] stated she did not observe anyone with injuries nor did she become aware of an injury complaint. [REDACTED] stated she observed [REDACTED] [REDACTED] handcuffed upon exiting her bedroom. [REDACTED] stated the police escorted everyone out of the house to the hallway while they searched the apartment. [REDACTED] stated the officers who conducted the search wore civilian clothing. [REDACTED] stated she did not witness the search.

Canvass:

A canvass was conducted to ascertain if there were any surveillance video at [REDACTED] which resulted in negative results.

Identification of Subject Officer:

[REDACTED] was presented photo arrays to see if she could identify any of the subject officers at the scene. [REDACTED] identified Sgt. Clements, PO Cleri and Det. Espinal.

The I/O reviewed the Pre Tac Plan which revealed Sgt. Janette Cruz was the executing officer and Det. Beasley was PO Cleri's partner for the day.

Review of Department Records:

Review of Arrest & 61 Report:

A review of Arrest report # [REDACTED] and complaint report # [REDACTED], revealed the following: [REDACTED]

Command Log:

A review of command log revealed [REDACTED] which he documented ☐ Hold for IAB ☐.

TRI Report:

I conducted a FORMS search to ascertain if a TRI report was prepared for the incident date, which resulted in negative results.

Body Cam:

A body cam check was conducted to ascertain if the officer were assigned body cam. I revealed no one from the SRG Anti-crime team was assigned body cameras.

ESU SD2 Report:

A review of ESU SDA report was conducted and revealed the following: At T/P/O Apprehension team utilizing entry tools, heavy weapons and ballistic protection gained entry to search warrant location and placed subject (s) into custody. At no time did entry team search for or recover evidence from within search warrant location. Entry team was relieved by A/O and arrest team. There were no injuries to subject (s) or MOS at the scene.

PETS:

A review of PETS revealed the following vouchers invoiced:

Invoice # [REDACTED] was vouchered as Arrest evidence/currency which contained \$5100 USC (44 - \$100 dollar bills, 2 - \$50 dollar bills and 30 - \$20 dollar bills).

Invoice [REDACTED] was vouchered as arrest evidence/firearm with contained (8) 9MM caliber rounds and (15) .38 caliber rounds.

Invoice # [REDACTED] was vouchered as arrest evidence/general property which contained one dagger, one black taser and one black taser case.

Invoice [REDACTED] was vouchered as arrest evidence/controlled substance which contained (29) alleged marijuana cigarettes, one tube of alleged marijuana, twob ags of alleged marijuana and two scales containing alleged marijuana residue.

ICAD:

An ICAD search was conducted to ascertain if any MOS requested EMS for [REDACTED], (c/v's grandmother. I revealed that there were no 911 calls to [REDACTED] residence on April 25, 2018. However, I did reveal on April 26, 2018 at 1747, EMS responded to [REDACTED] residence for the complainant which stated that he was unconscious.

Memobook:

A review of Sgt. Cruz, Sgt. Clements, Det. Espinal, and Det. Beasley's activity log revealed accurate/complete entries with no discrepancies. All S/O's documented that they conducted a search warrant at the c/v's residence.

A review of PO Cleri's activity log revealed that he failed to document [REDACTED] was being arrested in regards to a search warrant, due to the fact he was the arresting officer.

Computer and Related Background Checks:

IAPro/ICIS/CCRB/CPI:

A background check was conducted on Sgt. Janette Cruz in IAPro, ICMS, CCRB, and CPI which revealed that she was appointed on August 30, 1993 and is currently assigned to Intel Section. I revealed Sgt. Cruz has seven (7) prior Missing Property allegations which were all closed as unsubstantiated.

A background check was conducted on Sgt. Brian Clements in IAPro, ICMS, CCRB, and CPI which revealed that he was appointed on July 1, 1998 and is currently assigned to the SRG 2. Sgt. Clements has ten (10) similar allegation of Missing Property which nine (9) were closed as Unsubstantiated. The other Missing Property case was closed as substantiated. Sgt. Clements failed to voucher a box cutter, which he received a BCD.

A background check was conducted on PO Richard Cleri in IAPro, ICMS, CCRB, and CPI which revealed that he was appointed on January 23, 2007 and is currently assigned to the SRG 2. PO Cleri has no prior allegations of Missing Property.

A background check was conducted on Det. Edwin Espinal in IAPro, ICMS, CCRB, and CPI which revealed that he was appointed on July 1, 2004 and is currently assigned to the SRG 2. Det. Espinal has five (5) similar allegation of Missing Property which four (4) were closed as Unsubstantiated. The other Missing Property case was closed as substantiated. Det. Espinal failed to voucher a PBA card that he obtained from a respondent that he issued a summons to, which he received an ACD.

A background check was conducted on Det. Kevin Beasley in IAPro, ICMS, CCRB, and CPI which revealed that he was appointed on January 9, 2012 and is currently assigned to the SRG 2. PO Beasley has one similar allegation of Missing Property which was closed as Unsubstantiated.

A background check was conducted on Det. Robert Welsome in IAPro, ICMS, CCRB, and CPI which revealed that he was appointed on April 15, 1997 and is currently assigned to the ESU. Det. Welsome has two similar allegation of Force-Physical Force which was closed as I&I.

A background check was conducted on Det. James Tobin in IAPro, ICMS, CCRB, and CPI which revealed that he was appointed on July 6, 2011 and is currently assigned to the ESU. Det. Tobin has one similar allegation of Force-Physical Force which was closed as Unsubstantiated.

Conferrals Conducted:

Captain Giordano conferred with D.I William Kivlehan, Commanding Officer of the Strategic Response Group Citywide Anti-Crime Team in regards to the warrant executed at [REDACTED], confines of the 48 Precinct in which [REDACTED] was arrested. D.I Kivlehan stated that he always stays at the scene until the perpetrator is removed from the scene, and if he has the time he stays until the completion of the search warrant. He does remember that he left the location after the prisoner was removed from the premise and that he assigned Lt. Raso to supervise the search after he left the location. The arresting officer was the vouchering officer for any property. The premise was occupied by other residents who were not arrested in regards to the search warrant.

A conferral with Det. Rogers, IAB Intel in regards to RFI #18-0903 stated Sgt. Cruz is assigned as the FIO. She is regarded as nice to subordinates, and polite when dealing with the public. Dt. Espinal and PO Cleri are assigned to SRG Anti-Crime. The field agent stated their turn out location is SRG 2. The field agent could not offer any further information in regards to the remaining subject officers and believes the allegation is unlikely.

A conferral with Chief Omer Wiczzyk, Public Integrity Bureau in regards to obtaining a waiver to conduct PG hearings for the subject officers were approved.

Other Information of Investigative Value:

CRIMS check:

I conducted a CRIMS check to ascertain [REDACTED]'s next court hearing. I revealed that [REDACTED]

Leads Online:

I conducted a Leads online check for the following officers and witness to ascertain if they pawned [REDACTED] 14 carat Cuban link chain: Sgt. Brian Clements, Sgt. Janette Cruz, Det. Edwin Espinal, PO Richard Cleri, Det. Kevin Beasley, [REDACTED]. I revealed the aforementioned subjects/witnesses resulted in negative results.

IT Test:

A review of Sgt. Brian Clements IT test revealed, he had three (3) property test conducted on him by Group 52 which resulted in a pass. Det. Edwin Espinal's IT test revealed, he also had three (3) property test conducted on him by Group 52 which resulted in a pass. Sgt. Cruz, Det. Beasley and PO Cleri has never been tested.

Review of CCRB case:

I review CCRB case# 201803486 and revealed the CCRB investigator interviewed the following witnesses: [REDACTED] [REDACTED] stated the officers never threatened to arrest her. She further stated that she had no complaints against the officers who encountered her. [REDACTED] and [REDACTED] stated the officers threatened to arrest them and damaged property in their apartment. They further stated that they do not know the whereabouts of [REDACTED] [REDACTED] and doesn't know if she is still pregnant. The CCRB investigator did interview PO Richard Cleri, which he stated that he did arrest [REDACTED] at [REDACTED]. PO Richard stated that the only officers that searched [REDACTED] bedroom was Officer Beasley and himself. He further stated that he vouchered currency and contraband from the residence. PO Cleri did admit removing sheetrock from the walls to attempt to locate a firearm. He also stated that he removed mirrors from the complainant's ceiling in an attempt to find weapons. The CCRB investigator didn't interview complainant [REDACTED] or [REDACTED]. This case is still being investigated by CCRB.

Programmatic Review:

It was determined that this case does not require a programmatic review.

Patrol Guide 206-13 Hearings:

INTERVIEW OF SGT. JANETTE CRUZ

On October 30, 2018, Sgt. Cruz was interviewed and stated that he was working on April 25, 2018 when she participated in a search warrant at [REDACTED]. She further stated that they obtained a search warrant from a Confidential Informant, who informed Sergeant Clements that the target had a firearm at his residence. She stated ESU gained entry first, then they followed after. She stated the SRG 2 Anti-Crime team conducted the search were wearing ray jackets. Sgt. Cruz stated that the target was [REDACTED] and the arresting officer was Officer Richard Cleri. She further stated Detective Beasley was Officer Cleri's partner for the day and Sgt. Clements was the Supervisor who was in charge of the search. Sgt. Cruz stated that she didn't enter [REDACTED] bedroom at any point in time. She stated that she only searched the females that were in the living room area. Sgt. Cruz stated that she stayed in the living room with all the subjects while the arrest team searched the premise. She further stated that she does not recall which officers were in the target's bedroom. She further stated the UMOS recovered drugs, currency and ammo, but she couldn't remember which officer was in possession of the property. She stated she didn't know the exact amount of currency they recovered. Sgt. Cruz stated that she didn't hear any officers damaging walls, mirrors, TV, PS3 or air conditioner in [REDACTED] room. She stated she did not hear anyone complaining about missing money. She also stated that she did not nor observe any officers take [REDACTED] \$600 USC, 14 karat Cuban link chain or [REDACTED] \$40 USC.

INTERVIEW OF SGT. CLEMENTS

On November 1, 2018, Sgt. Clements was interviewed and stated he was working on April 25, 2018 when his team conducted a search warrant at [REDACTED]. Sgt. Clements stated that he obtained information from [REDACTED] that the target, [REDACTED] was in possession of a firearm at his residence. Sgt. Clements stated that he was assigned outside window security, when ESU entered the apartment. He stated when ESU cleared the apartment he entered and walked into the target's bedroom to conduct his search. Sgt. Clements further stated when he entered [REDACTED] bedroom and observed [REDACTED] and his girlfriend handcuffed. At which point in time, Sgt. Clements searched [REDACTED]. Sgt. Clements stated [REDACTED] was arrested by Officer Richard Cleri. He stated he believed there were two males and two females in the apartment. He stated for precautionary purposes, [REDACTED] grandmother was escorted to the hospital, since she was elderly. He stated he does not recall providing a copy of the search warrant to [REDACTED] ([REDACTED] stated in his interview that officers showed him a copy of the search warrant at the 48 Precinct).

Sgt. Clements stated that the only officer that searched [REDACTED] bedroom was Officer Cleri, Officer Beasley and himself. He stated he was the supervisor on the scene while the search was being conducted. He stated they recovered a taser gun, dagger, marijuana and approximately \$5,100 USC. Sgt. Clements stated Officer Cleri recovered [REDACTED] currency, and property. He further stated that he doesn't remember seeing a 14 Karat Cuban link gold chain while conducting his search. Sgt. Clements stated that when they entered [REDACTED] bedroom, he observed holes in his walls where possibly a weapon can be placed. He further stated that they recover ammunition from his bedroom, which made them think the firearm would be in the wall. Sgt. Clements stated they removed certain walls to ascertain if there were a firearm there. He also stated they removed plastic mirrors from the ceiling because there was enough space between the ceiling and the mirror to store a firearm. Sgt. Clements stated that he has conducted over seventy (70) search warrants and has recovered firearms in walls. Sgt. Clements stated that he did not nor did he observe any MOS take [REDACTED] \$600 USC and 14 Karat Cuban link gold chain. He also stated that he did not nor did he observe any MOS take [REDACTED] \$40 USC.

INTERVIEW OF PO RICHARD CLERI

On November 1, 2018, PO Cleri was interviewed and stated he was working on April 25, 2018 when his team conducted a search warrant at [REDACTED]. PO Cleri stated that they obtained information from [REDACTED] that the target, [REDACTED] was in possession of a firearm at his residence. PO Cleri stated when ESU entered the residence and informed them everything was secured. He stated after ESU gave them permission to enter, he proceeded into the apartment and towards the target's bedroom. He stated when he entered the bedroom he observed [REDACTED] handcuffed, at which point he escorted him to the living with the rest of his family. He stated Sgt. Clements, PO Beasley and himself were in [REDACTED] bedroom conducting the search. He stated that the highest ranking officer on the scene was D.I Kivlehan. PO Cleri stated the he was the arresting officer and his partner was Officer Beasley. He stated that [REDACTED] [REDACTED] was escorted to the hospital for precautionary

purposes due to her age.

PO Cleri stated that he doesn't recall if he or any MOS provided a copy of the search warrant to [REDACTED] ([REDACTED] stated in his previous interview, that an officer showed him a copy of the search warrant at the 48 Precinct). Officer Cleri stated that he recovered 9mm rounds, 38 caliber rounds, marijuana, scale with marijuana residue, cell phones, taser gun, dagger and \$5,100 USC. PO Cleri stated that he recovered [REDACTED] currency in his dresser draw and not in the armoire, where the complainant stated in his interview. PO Cleri stated that he did not observe a 14 Karat Cuban link gold chain while conducting the search. PO Cleri stated that he did not nor did he observe any MOS take [REDACTED] \$600 USC and 14 Karat Cuban link gold chain. He also stated that he did not nor did he observe any MOS take [REDACTED] \$40 USC. PO Cleri stated that he did remove walls from [REDACTED] bedroom. He further stated that in his experience he has recovered firearms in walls and ceilings while conducting search warrants. He stated that there was a visible hole in [REDACTED] room where a firearm could fit in. He also stated he removed mirrors that were hanging from the ceiling but never damage any of [REDACTED] property.

INTERVIEW OF DET. EDWIN ESPINAL

On November 14, 2018, Det. Espinal was interviewed and stated he was working on April 25, 2018 when his team conducted a search warrant at [REDACTED]. Det. Espinal stated that he didn't know who obtained the search warrant. He further stated that he was assigned as the advanced team, which his duty was to gain entry to the building and keep the doors open so ESU can enter and exit the building. He stated when ESU entered the target's residence, he was positioned outside of the building. He stated that he didn't search any individuals or searched the complainant's apartment. He stated that he was aware that the target was arrested but he didn't know his name. He further stated he does not recall if Lt. Raso was the highest ranking officer on the scene. Det. Espinal stated that he didn't take nor observe any officers take [REDACTED] 14 Karat Gold Cuban link chain or \$600 USC. He further stated that he didn't take nor observe any officers take [REDACTED] \$40 USC. Det. Espinal further stated that he did not nor observe any officers damage [REDACTED] bedroom walls, couch, PS3, air conditioner, TV or mirrors.

INTERVIEW OF DET. KEVIN BEASLEY

On November 14, 2018, Det. Beasley was interviewed and stated he was working on April 25, 2018 when his team conducted a search warrant at [REDACTED]. Det. Beasley stated that they obtained the search warrant from a C.I who stated the target had a firearm in his residence. He further stated the he was assigned as window security with his partner, PO Cleri and Sgt. Clements. He stated when ESU entered [REDACTED] residence, and cleared the apartment. His team entered the residence, where he observed several individuals handcuffed. Det. Beasley further stated that they walked into [REDACTED] bedroom which is located in the back of the apartment, where he observed [REDACTED] and his girlfriend handcuffed. He stated that he does not recall who searched [REDACTED] and his girlfriend, but he did recall escorting them out of the bedroom into the living room. At that point in time, Sgt. Clements, PO Cleri and he re-entered [REDACTED] bedroom to conduct the search. Det. Beasley stated that he believes Lt. Raso was present at the search warrant because the whole team was there. He reiterated that the only officers that entered and searched [REDACTED] bedroom was Sgt. Clements, PO Cleri and himself.

He stated that he does not recall showing [REDACTED] a copy of the search warrant, however [REDACTED] stated in his interview the officers showed him a copy of the warrant while in the 48 Precinct. Det. Beasley stated that they recovered marijuana, a dagger, a taser, and \$5,100 USC from [REDACTED] bedroom. Det. Beasley stated that he remembers recovering [REDACTED] money from his dresser draw. I provided a picture of [REDACTED] armoire to Det. Beasley to ascertain if he recovered the money from there. He stated that he doesn't recall recovering the money from the armoire. I provided a photo of [REDACTED] 14 Karat Gold Cuban link chain to ascertain if he remembers observing it while conducting the search, which he denied. Det. Beasley stated that he did in fact remove a wall from [REDACTED] bedroom, because the hole was big enough to put a firearm in. He stated in his experience conducting search warrants, he has recovered firearms and contraband behind walls. He also stated that they did remove mirrors from the ceiling, due to the fact that it was big enough to fit a firearm. Det. Beasley stated that he didn't take nor observe any officers take [REDACTED] 14 Kara t gold Cuban link chain or \$600 USC. He further stated that he didn't take nor observe any officers take [REDACTED] \$40 USC. He further stated that he didn't nor observe any officer damage [REDACTED] bedroom walls, couch, PS3, air conditioner, TV or mirrors.

Supervisory Deficiencies:

N/A

Conclusion:

Based on the information I have obtained during this investigation, it was determined that the S/O's obtained a signed search warrant # [REDACTED] by Judge Jeffrey M. Zimmerman to conduct a search of the complainant's residence. Therefore, the allegation of Disputed Search of a Premise against Sgt. Clements, Det. Beasley and PO Cleri will be closed as Exonerated. In regards to the allegation of Damage to Complainant's Property-Not Vouchered against Sgt. Clements, Det. Beasley and PO Cleri. The officers admitted in their PG hearing that they removed [REDACTED] wall to search for a firearm. Their actions were correct, due to the fact that the search warrant pertained to searching for a gun. They found 9mm rounds at the location and observed a visible hole in the wall, which made it possible to secrete a firearm. Therefore, the allegation will be closed as Exonerated. The complainant [REDACTED]. Therefore, the allegation of Disputed Arrest against PO Cleri will be closed as Exonerated. The complainant stated in his interview that the officers showed him a copy of the search warrant when he was at the precinct. Therefore, the allegation of Fail to Show Warrant-Search Warrant against Sgt. Clements and PO Cleri will be closed as Exonerated.

The complainant stated in his first interview that he was missing \$5,000 USC. In his second interview, he stated that he was

missing \$5,700 USC and a 14 Karat Gold Cuban link which was located in his armoire. The I/O interviewed PO Cleri and Det. Beasley who informed me that he recovered the c/v currency in his dresser draw, which was located on the opposite side of the room. The I/O could not prove or disprove the allegation of Missing Property from the Premise against Sgt. Clements, Sgt. Cruz, PO Cleri, Det. Espinal and Det. Beasley. Therefore, the allegation will be closed as Unsubstantiated. The allegation of FADO -Abuse of Authority-Fail to Show Warrant against Sgt. Clements and PO Cleri will be investigated by CCRB and closed as I&I.

sustained no injuries and went to St. Barnabas Hospital on her own as a precaution for her pregnancy. stated that the doctors informed her that her pregnancy was fine. Therefore, the allegation of Use of Force-Level 2 against Det. Welsome and Det. Tobin will be closed as I&I. The I/O could not prove or disprove the allegation of Force-Physical Force against Det. Welsome and Det. Tobin. Therefore, the allegation will be closed as Unsubstantiated. The allegation of FADO Force-Physical Force against Det. Welsome and Det. Tobin is currently being investigated by CCRB under case #201803486. Therefore, the allegation will be closed as I&I.

Subjects Involved

Name	Status	Sex	Race	Dob
914329 JANETTE CRUZ SDS (318-INTEL-CRIMINAL INTEL SECTION)	UNIFORM MEMBER OF SERVICE	FEMALE		

Allegations

1	Full Allegation	Classification	Allegation Index	Allegation Date	Finding	Finding Date
	Missing Property - from Premise - During Search Warrant	MISSING PROPERTY	SW-From A Warrant	06/18/2018	12 - Unsubstantiated	11/13/2018
	Comments THE I/O COULD NOT PROVE OR DISPROVE THE ALLEGATION OF MISSING PROPERTY-FROM PREMISE. THEREFORE, THE ALLEGATION WILL BE CLOSED AS UNSUBSTANTIATED.					

Name	Status	Sex	Race	Dob
919858 ROBERT WELSOME DTS (454-EMER SERV SQ 04)	UNIFORM MEMBER OF SERVICE	MALE	WHITE	

Allegations

1	Full Allegation	Classification	Allegation Index	Allegation Date	Finding	Finding Date
	Use of Force - Level 2	Arrest Effectuated	Force Investigation Notification	04/27/2018	04 - Info. and Intelligence	04/27/2018
	Comments This investigation disclosed that on April 23, 2018, based on the Use of Force investigative responsibilities and reporting guide, this matter was investigated by the Internal Affairs Bureau, as a Level 2 Use of Force due to the complainant, , whom is pregnant, alleging that she was handcuffed and pushed to her knees upon entry by ESU officers executing an entry pursuant to a search warrant from Crime Stoppers Gun Stop tip # 18-538. sustained no injuries and went to St. Barnabas Hospital on her own as a precaution for her pregnancy. Her child and pregnancy were unaffected and no injuries were diagnosed as per medical discharge paperwork. stated that doctors stated to her that her pregnancy was fine. As such, the allegation of Use of Force-Level 2 will be closed as Information and Intelligence.					
2	Full Allegation	Classification	Allegation Index	Allegation Date	Finding	Finding Date
	FADO Force - Physical Force	Arrest Effectuated	O-Other	04/27/2018	04 - Info. and Intelligence	04/27/2018
	Comments THE I/O DETERMINED THAT THE ALLEGATION OF FADO FORCE-PHYSICAL FORCE IS CURRENTLY BEING INVESTIGATED BY CCRB UNDER CASE# 201803486. THEREFORE, THE ALLEGATION WILL BE CLOSED AS I&I.					
3	Full Allegation	Classification	Allegation Index	Allegation Date	Finding	Finding Date
	Force - Physical Force	Arrest Effectuated	O-Other	12/06/2018	12 - Unsubstantiated	12/06/2018
	Comments AKA; CLAIMS AN OFFICER PUSHED HER TO THE GROUND WHERE SHE SUSTAINED A BRUISED KNEE. THE I/O COULD NOT PROVE OR DISPROVE THE ALLEGATION OF FORCE-PHYSICAL FORCE. THEREFORE THE ALLEGATION WILL BE CLOSED AS UNSUBSTANTIATED.					

Name 929108 BRIAN CLEMENTS SSA (425- STRATEGIC RESPONSE GROUP)	Status UNIFORM MEMBER OF SERVICE	Sex MALE	Race WHITE	Dob [REDACTED]
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Allegations					
1 Full Allegation Disputed Search of a Premise - Enforcement Action Taken - Arrest/Summons	Classification Abuse of Dept Regulations	Allegation Index Disputed Search	Allegation Date 04/25/2018	Finding 01 - Exonerated	Finding Date 11/13/2018
Comments THE S/O OBTAINED A SIGNED SEARCH WARRANT # [REDACTED] BY JUDGE JEFFREY M. ZIMMERMAN TO CONDUCT A SEARCH OF [REDACTED] RESIDENCE. THEREFORE, IT WAS DETERMINED THAT THE ALLEGATION OF DISPUTED SEARCH OF A PREMISE WILL BE CLOSED AS EXONERATED.					
2 Full Allegation Fail to Show Warrant - Search Warrant	Classification Abuse of Dept Regulations	Allegation Index VRP-Violation Rules/Procedures	Allegation Date 04/25/2018	Finding 01 - Exonerated	Finding Date 11/13/2018
Comments THE COMPLAINANT STATED IN HIS INTERVIEW THAT THE OFFICERS SHOWED HIM A COPY OF THE SEARCH WARRANT WHEN HE WAS AT THE PRECINCT. THEREFORE, THE ALLEGATION OF FAIL TO SHOW WARRANT- SEARCH WARRANT WILL BE CLOSED AS EXONERATED.					
3 Full Allegation FADO Abuse of Authority - Fail to Show Warrant - Search Warrant	Classification Abuse of Dept Regulations	Allegation Index FADO	Allegation Date 04/25/2018	Finding 04 - Info. and Intelligence	Finding Date 11/13/2018
Comments THE ALLEGATION OF FADO ABUSE OF AUTHORITY- FAIL TO SHOW WARRANT WILL BE INVESTIGATED BY CCRB. THEREFORE, THE ALLEGATION WILL BE CLOSED AS I&I.					
4 Full Allegation Damage to Complainant's Property - Not Vouchered	Classification Abuse of Dept Regulations	Allegation Index Damage to Complainant Property	Allegation Date 04/25/2018	Finding 01 - Exonerated	Finding Date 11/13/2018
Comments SGT. CLEMENTS ADMITTED IN HIS PG HEARING TO REMOVING C/V'S WALL TO SEARCH FOR A GUN. HIS ACTION WAS CORRECT DUE TO THE FACT THAT THE SEARCH WARRANT PERTAINED TO SEARCHING FOR A FIREARM. THE S/O FOUND 9MM ROUNDS AT THE LOCATION AND OBSERVED A VISIBLE HOLE IN THE WALL, WHICH MADE IT POSSIBLE TO SECRETE A FIREARM. THEREFORE, THE ALLEGATION OF DAMAGE TO COMPLAINANT'S PROPERTY- NOT VOUCHERED WILL BE CLOSED AS EXONERATED.					
5 Full Allegation Missing Property - from Premise - During Search Warrant	Classification MISSING PROPERTY	Allegation Index SW-From A Warrant	Allegation Date 07/25/2018	Finding 12 - Unsubstantiated	Finding Date 11/13/2018
Comments THE I/O COULD NOT PROVE OR DISPROVE THE ALLEGATION OF MISSING PROPERTY-FROM PREMISE-DURING SEARCH WARRANT. THEREFORE, THE ALLEGATION WILL BE CLOSED AS UNSUBSTANTIATED.					

Name 934831 EDWIN ESPINAL DTS (425- STRATEGIC RESPONSE GROUP)	Status UNIFORM MEMBER OF SERVICE	Sex MALE	Race	Dob [REDACTED]
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Allegations					
1 Full Allegation Missing Property - from Premise -	Classification MISSING PROPERTY	Allegation Index SW-From A Warrant	Allegation Date 07/25/2018	Finding 12 - Unsubstantiated	Finding Date 11/27/2018

During Search Warrant					
	Comments THE I/O COULD NOT PROVE OR DISPROVE THE ALLEGATION OF MISSING PROPERTY-FROM PREMISE-DURING SEARCH WARRANT. THEREFORE THE ALLEGATION WILL BE CLOSED AS UNSUBSTANTIATED.				
Name 944034 RICHARD CLERI POM (425-STRATEGIC RESPONSE GROUP)	Status UNIFORM MEMBER OF SERVICE	Sex MALE	Race WHITE	Dob [REDACTED]	
Allegations					
1 Full Allegation Disputed Search of a Premise - Enforcement Action Taken - Arrest/Summons	Classification Abuse of Dept Regulations	Allegation Index Disputed Search	Allegation Date 04/25/2018	Finding 01 - Exonerated	Finding Date 11/13/2018
	Comments THE S/O OBTAINED A SIGNED SEARCH WARRANT # [REDACTED] BY JUDGE JEFFREY M. ZIMMERMAN TO CONDUCT A SEARCH OF [REDACTED] RESIDENCE. THEREFORE, IT WAS DETERMINED THAT THE ALLEGATION OF DISPUTED SEARCH OF A PREMISE WILL BE CLOSED AS EXONERATED.				
2 Full Allegation Damage to Complainant's Property - Not Vouchered	Classification Abuse of Dept Regulations	Allegation Index Damage to Complainant Property	Allegation Date 04/25/2018	Finding 01 - Exonerated	Finding Date 11/13/2018
	Comments PO CLERI ADMITTED IN HIS PG HEARING TO REMOVING C/V'S WALL TO SEARCH FOR A GUN. HIS ACTION WAS CORRECT DUE TO THE FACT THAT THE SEARCH WARRANT PERTAINED TO SEARCHING FOR A FIREARM. THE S/O FOUND 9MM ROUNDS AT THE LOCATION AND OBSERVED A VISIBLE HOLE IN THE WALL, WHICH MADE IT POSSIBLE TO SECRETE A FIREARM. THEREFORE, THE ALLEGATION OF DAMAGE TO COMPLAINANT'S PROPERTY- NOT VOUCHERED WILL BE CLOSED AS EXONERATED.				
3 Full Allegation Disputed Arrest -	Classification Miscellaneous	Allegation Index O-Miscellaneous Other	Allegation Date 04/25/2018	Finding 01 - Exonerated	Finding Date 11/13/2018
	Comments THE COMPLAINANT [REDACTED]. THEREFORE, THE ALLEGATION OF DISPUTED ARREST WILL BE CLOSED AS EXONERATED.				
4 Full Allegation Missing Property - from Premise - During Search Warrant	Classification MISSING PROPERTY	Allegation Index SW-From A Warrant	Allegation Date 04/25/2018	Finding 12 - Unsubstantiated	Finding Date 11/13/2018
	Comments THE I/O COULD NOT PROVE OR DISPROVE THE ALLEGATION OF MISSING PROPERTY FROM PREMISE. THEREFORE, THE ALLEGATION WILL BE CLOSED AS UNSUBSTANTIATED.				
5 Full Allegation FADO Abuse of Authority - Fail to Show Warrant - Search Warrant	Classification Abuse of Dept Regulations	Allegation Index FADO	Allegation Date 04/25/2018	Finding 04 - Info. and Intelligence	Finding Date 11/13/2018
	Comments THE ALLEGATION OF FADO ABUSE OF AUTHORITY- FAIL TO SHOW WARRANT WILL BE INVESTIGATED BY CCRB. THEREFORE, THE ALLEGATION WILL BE CLOSED AS I&I.				
6 Full Allegation Fail to Show Warrant - Search Warrant	Classification Abuse of Dept Regulations	Allegation Index VRP-Violation Rules/Procedures	Allegation Date 04/25/2018	Finding 01 - Exonerated	Finding Date 11/13/2018
	Comments				

		THE COMPLAINANT STATED IN HIS INTERVIEW THAT THE OFFICERS SHOWED HIM A COPY OF THE SEARCH WARRANT WHEN HE WAS AT THE PRECINCT. THEREFORE, THE ALLEGATION OF FAIL TO SHOW WARRANT- SEARCH WARRANT WILL BE CLOSED AS EXONERATED.				
7	Full Allegation Additional Information Prior Log -	Classification NOTIFICATION/Additional Information	Allegation Index ADD-Additional Information	Allegation Date 04/30/2018	Finding 04 - Info. and Intelligence	Finding Date 11/13/2018
	Comments THE ALLEGATION OF ADDITIONAL INFORMATION PRIOR LOG WILL BE CLOSED AS I&I.					
8	Full Allegation Memobook Incomplete/Improper -	Classification Abuse of Dept Regulations	Allegation Index Administrative Integrity Issue	Allegation Date 11/13/2018	Finding 24 - Minor Procedural Violation	Finding Date 11/13/2018
	Comments THE S/O FAILED TO DOCUMENT THE NAME OF THE ARRESTEE IN HIS MEMOBOOK. THEREFORE, THE ALLEGATION OF MEMOBOOK INCOMPLETE/IMPROPER WILL BE CLOSED AS MINOR PROCEDURAL VIOLATION. THE S/O WILL BE ISSUED A LETTER OF REFERRAL.					
Name 951340 JAMES TOBIN POM (450-EMER SERV UNIT)		Status UNIFORM MEMBER OF SERVICE		Sex MALE	Race WHITE	Dob [REDACTED]
Allegations						
1	Full Allegation Use of Force - Level 2	Classification Arrest Effectuated	Allegation Index Force Investigation Notification	Allegation Date 04/27/2018	Finding 04 - Info. and Intelligence	Finding Date 04/27/2018
	Comments This investigation disclosed that on April 23, 2018, based on the Use of Force investigative responsibilities and reporting guide, this matter was investigated by the Internal Affairs Bureau, as a Level 2 Use of Force due to the complainant, [REDACTED], whom is pregnant, alleging that she was handcuffed and was pushed to her knees upon entry by ESU officers executing an entry pursuant to a search warrant from Crime Stoppers Gun Stop tip # 18-538. [REDACTED] sustained no injuries and went to St. Barnabas Hospital on her own as a precaution for her pregnancy. Her child and pregnancy were unaffected and no injuries were diagnosed as per medical discharge paperwork. [REDACTED] stated that doctors stated to her that her pregnancy was fine. As such, the allegation of Use of Force-Level 2 will be closed as Information and Intelligence.					
2	Full Allegation FADO Force - Physical Force	Classification Arrest Effectuated	Allegation Index O-Other	Allegation Date 04/27/2018	Finding 04 - Info. and Intelligence	Finding Date 04/27/2018
	Comments THE I/O DETERMINED THAT THE ALLEGATION OF FADO FORCE-PHYSICAL FORCE IS CURRENTLY BEING INVESTIGATED BY CCRB UNDER CASE# 201803486. THEREFORE, THE ALLEGATION WILL BE CLOSED AS I&I.					
3	Full Allegation Force - Physical Force	Classification Arrest Effectuated	Allegation Index O-Other	Allegation Date 12/06/2018	Finding 12 - Unsubstantiated	Finding Date 12/06/2018
	Comments [REDACTED] AKA; [REDACTED] CLAIMS AN OFFICER PUSHED HER TO THE GROUND WHERE SHE SUSTAINED A BRUISED KNEE. THE I/O COULD NOT PROVE OR DISPROVE THE ALLEGATION OF FORCE-PHYSICAL FORCE. THEREFORE, THE ALLEGATION WILL BE CLOSED AS UNSUBSTANTIATED.					
Name 951534 KEVIN BEASLEY DTS (425-STRATEGIC RESPONSE GROUP)		Status UNIFORM MEMBER OF SERVICE		Sex MALE	Race WHITE	Dob [REDACTED]
Allegations						
1	Full Allegation Damage to Complainant's Property - Not Vouchered	Classification Abuse of Dept Regulations	Allegation Index Damage to Complainant Property	Allegation Date 11/27/2018	Finding 01 - Exonerated	Finding Date 11/27/2018

		Comments DET. BEASLEY ADMITTED IN HIS PG HEARING TO REMOVING C/V'S WALL TO SEARCH FOR A GUN. HIS ACTION WAS CORRECT DUE TO THE FACT THAT THE SEARCH WARRANT PERTAINED TO SEARCHING FOR A FIREARM. THE S/O FOUND 9MM ROUNDS AT THE LOCATION AND OBSERVED A VISIBLE HOLE IN THE WALL, WHICH MADE IT POSSIBLE TO SECRETE A FIREARM. THEREFORE, THE ALLEGATION OF DAMAGE TO COMPLAINANT'S PROPERTY- NOT VOUCHERED WILL BE CLOSED AS EXONERATED.				
2	Full Allegation Missing Property - from Premise - During Search Warrant	Classification MISSING PROPERTY	Allegation Index SW-From A Warrant	Allegation Date 11/27/2018	Finding 12 - Unsubstantiated	Finding Date 11/27/2018
		Comments THE I/O COULD NOT PROVE OR DISPROVE THE ALLEGATION OF MISSING PROPERTY-FROM PREMISE-DURING SEARCH WARRANT. THEREFORE THE ALLEGATION WILL BE CLOSED AS UNSUBSTANTIATED.				
3	Full Allegation Disputed Search of a Premise - Enforcement Action Taken - Arrest/Summons	Classification Abuse of Dept Regulations	Allegation Index Disputed Search	Allegation Date 11/27/2018	Finding 01 - Exonerated	Finding Date 11/27/2018
		Comments THE S/O OBTAINED A SIGNED SEARCH WARRANT # [REDACTED] BY JUDGE JEFFREY M. ZIMMERMAN TO CONDUCT A SEARCH OF [REDACTED] RESIDENCE. THEREFORE, IT WAS DETERMINED THAT THE ALLEGATION OF DISPUTED SEARCH OF A PREMISE WILL BE CLOSED AS EXONERATED.				

ATTACHMENT

1	 'PO Cleri MPV'
2	 'Detective Kevin Beasley, NOD'
3	 'Sergeant Janette Cruz, NOD'
4	 'Sergeant Brian Clements, NOD'
5	 'Police Officer Richard Cleri, NOD'
6	 'Detective Edwin Espinal, NOD'
7	 'LETTER TO C/V - [REDACTED]'
8	 'LETTER TO C/V - [REDACTED]'

Reporting Officer:	Rank SDS	Name FRANCIS KAREEM	Tax Reg. No. 936612		Command G22-GROUP 22	
Reviewing Supervisor:	Manner of Closing 9M - UNSUBSTANTIATED / MINOR PROCEDURAL VIOLATION	Date Reviewed 12/07/2018	Date of Next Review	Name SHEA THOMAS		Supv. Tax No. 899848
Endorser:	Rank DI	Name DONNELLY JAMES	Tax Reg. No. 903823	Command G22-GROUP 22	DateTime Reviewed 12/03/2018 17:51	Status Approved
Comments THE UNDERSIGNED REVIEWED CASE AND RECOMMEND APPROVAL OF THE FINDINGS						
Endorser:	Rank DI	Name VIERLING LOUIS	Tax Reg. No. 919823	Command Z01-ZONE 1	DateTime Reviewed 12/05/2018 19:44	Status Rejected
Comments CASE REVIEWED: #1- ADD DTS ROBERT WELSOME & PO JAMES TOBIN TO CLOSING REPORT AS SUBJECTS; CONDUCT BACKGROUND CHECKS. #2- REGARDING ALLEGATIONS ASSIGNED TO DTS WELSOME & PO TOBIN; > FADO FORCE, PHYSICAL FORCE- CHANGE ALLEGATION FINDING FROM "UNFOUNDED" TO I&I- LIST THAT CASE IS CURRENTLY BEING INVESTIGATED BY CCRB UNDER CASE# 201803486. > ADD ALLEGATION "FORCE PHYSICAL FORCE, OTHER" & CLOSE AS UNSUBSTANTIATED. ([REDACTED] AKA; [REDACTED] CLAIMS AN OFFICER PUSHED HER AND SHE SUSTAINED A BRUISED KNEE IN REGARDS)-AS PER MEMO FROM C.O. ADMINISTRATION DATED 10/31/18 ALL FADO ALLEGATIONS EXCEPT DISCOURTESY & OFFENSIVE LANGUAGE MUST HAVE AN NYPD EQUIVALENT ALLEGATION ADDED & INVESTIGATED. #3- REGARDING ALLEGATIONS ASSIGNED TO SGT. CLEMENTS; > "DAMAGE TO COMPLAINANT'S PROPERTY, NOT VOUCHERED"- CHANGE FINDING FROM UNSUBSTANTIATED TO "EXONERATED" (SGT. ADMITS TO REMOVING WALL TO SEARCH FOR GUN; THIS ACTION WAS CORRECT DUE TO FACT THAT THE SW WAS OBTAINED FOR A GUN, 9MM ROUNDS WERE FOUND AT LOCATION & A HOLE WAS VISIBLE IN THE WALL, MAKING IT POSSIBLE TO SECRETE A FIREARM.) #4- REGARDING ALLEGATIONS ASSIGNED TO PO CLERI; > "DAMAGE TO COMPLAINANT'S PROPERTY-NOT VOUCHERED"- CHANGE FINDING FROM UNSUBSTANTIATED TO "EXONERATED" (PO CLERI ADMITS TO REMOVING WALL TO SEARCH FOR GUN; THIS ACTION WAS CORRECT DUE TO FACT THAT THE SW WAS OBTAINED FOR A GUN, 9MM ROUNDS WERE FOUND AT LOCATION & A HOLE WAS VISIBLE IN THE WALL, MAKING IT POSSIBLE TO SECRETE A FIREARM.) #5- REGARDING ALLEGATIONS ASSIGNED TO PO BEASLEY; > "DAMAGE TO COMPLAINANT'S PROPERTY-NOT VOUCHERED"- CHANGE FINDING FROM UNSUBSTANTIATED TO "EXONERATED" (PO BEASLEY ADMITS TO REMOVING WALL TO SEARCH FOR GUN; THIS ACTION WAS CORRECT DUE TO FACT THAT THE SW WAS OBTAINED FOR A GUN, 9MM ROUNDS WERE FOUND AT LOCATION & A HOLE WAS VISIBLE IN THE WALL, MAKING IT POSSIBLE TO SECRETE A FIREARM.) #6- AS PER TLR, W/S # 105 (3304546)- IT WAS DIRECTED THAT LT. RASO BE ADDED AS A SUBJECT- REVIEW TLR & IF THERE IS A VALID REASON THIS DOES NOT HAVE TO BE COMPLETED- DOCUMENT REASON ON A W/S. #7- OBTAIN CCRB CASE FOLDER AND UPLOAD TO CASE.						
Endorser:	Rank DI	Name DONNELLY JAMES	Tax Reg. No. 903823	Command G22-GROUP 22	DateTime Reviewed 12/07/2018 11:56	Status Approved
Comments						

	SUBMITTED FOR YOUR REVIEW, RECOMMEND APPROVAL.					
Endorser:	Rank DI	Name VIERLING LOUIS	Tax Reg. No. 919823	Command Z01-ZONE 1	DateTime Reviewed 12/07/2018 12:04	Status Approved
	Comments CASE REVIEWED: ADDITIONAL STEPS REQUESTED HAVE BEEN COMPLETED.					
Endorser:	Rank INS	Name SHEA THOMAS	Tax Reg. No. 899848	Command Z01-ZONE 1	DateTime Reviewed 12/07/2018 13:51	Status Approved
	Comments APPROVE CLOSING.					